

		The Motion is DENIED WITHOUT PREJUDICE. No sanctions are awarded. The Court has been notified by Counsel that deposition is currently set for June 4, 2025. The Court sets a Review Hearing for June 10, 2025, 9:30. Plaintiff to give notice.
5	Bigalimov vs. Tapia 24-01389070	1) Demurrer to Amended Complaint 2) Motion to Strike- Anti SLAPP 3) Case Management Conference Defendant Gafe Pizza Inc. moves for an order striking the entire FAC of Plaintiff Rolan Bigalimov on the grounds that the allegations arise out of Defendant's exercise of the right of petition and to free speech and it is not probable that Plaintiff will prevail on his claims. Code of Civil Procedure section 425.16 provides in relevant part: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the Court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." This section is to be construed broadly. (Code Civ. Proc., § 425.16(a).) The court's determination of an anti-SLAPP motion is a two-step process. First, the court determines if the party moving to strike a cause of action has met its initial burden to show that the cause of action arises from an act in furtherance of the moving party's right of petition or free speech. Then, if the court determines that showing has been made, the court determines whether the opposing party has demonstrated a probability of prevailing on the claim. (Navellier v. Sletten (2002) 29 Cal.4th 82, 88.)

“In the anti-SLAPP context, the critical consideration is whether the cause of action is based on the defendant’s protected free speech or petitioning activity.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 89.) “In deciding whether the initial ‘arising from’ requirement is met, a court considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’” (Ibid.)

Here, Plaintiff does not dispute that this action is based on the filing of a motion for relief from default in the earlier-filed case. Plaintiff contends that declarations filed in support of that motion for relief from default contained false statements and, as a result of the fraud, the motion for relief from default was granted, the lawsuit continued, and he remained unhoused and suffered as a result. The filing of the motion for relief and supporting declarations falls within the language of the anti-SLAPP statute as “written or oral statement[s] or writing[s] made in connection with an issue under consideration or review by a . . . judicial body” and “written or oral statement[s] or writing[s] made before a . . . judicial proceeding[.]” (Code Civ. Proc., § 425.16(e)(1)-(2).)

Gafe Pizza has met its burden of showing that this action arises out of acts in furtherance of its right of petition or free speech and that activity is protected by the anti-SLAPP statute.

In light of Gafe Pizza’s showing, the burden shifts to Plaintiff to demonstrate that he has a probability of prevailing on his claims. The FAC makes references to causes of action for fraud, intentional infliction of emotional distress, and conspiracy.

Plaintiff’s own declaration provides information as to how much time he spent preparing his opposition. It does not present any evidence in support of his claims. Plaintiff has attached several documents to a document he has titled an Opposition to Gafe Pizza’s Request for Judicial Notice but which actually appears to be his own Request for Judicial

		Notice. Those documents include the declarations filed in support of the motion for relief from default, discovery requests, and email correspondence. None of the documents support Plaintiff's causes of action. Therefore, Plaintiff has not met his burden to show he has a probability of prevailing on his claims. In light of the above, the Special Motion to Strike is GRANTED. Gafe Pizza's request for attorney fees is DENIED. Gafe Pizza's Demurrer to the FAC is MOOT in light of the granting of the Special Motion to Strike. Gafe Pizza to give notice.
6	Bigalimov vs. Tapia 24-01420887	1) Demurrer to Complaint 2) Demurrer to Complaint 3) Motion to Strike - Anti SLAPP 4) Motion to Strike - Anti SLAPP 5) Case Management Conference Kozo Nakagawa, Fernando Tapia, Kenia Covolo, Julie Tapia, Salmex Pizza Inc., Gafe Pizza Inc., Salmar Pizza Inc., Domino's Pizza Inc. and Granvista move for an order striking the entire Complaint of Plaintiff Rolan Bigalimov on the grounds that the allegations arise out of Defendants exercise of the right of petition and to free speech and it is not probable that Plaintiff will prevail on his claims. Code of Civil Procedure section 425.16 provides in relevant part: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the Court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the